

Part-time Domestic Helper Insurance Plan 鐘點家傭保障計劃

CHUBB®

Policy Wording
保單條款

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Part-time Domestic Helper Insurance Plan

Part 1. General Advice

You should consider the appropriateness of this product having regard to **Your** objectives, financial situation and needs. **You** need to decide if the limits, type and level of cover are appropriate for **You**.

Part 2. About The Insurer

Chubb Insurance Hong Kong Limited (a company incorporated in **Hong Kong** and having its registered office address at 39/F, One Taikoo Place, 979 King's Road, Quarry Bay, Hong Kong) ("**Chubb**") is the insurer of this product. In this **Policy Wording**, "**We**", "**Us**", "**Our**" means Chubb Insurance Hong Kong Limited. **Our** contact details are:

O +852 3191 6800
F +852 2560 3565
E Inquiries.HK@chubb.com

Part 3. Cover We Can Offer

When **You** applied for this insurance, **You** completed an application. **We** have relied upon the information supplied to decide the terms of cover **We** will provide. The information **You** have provided shall form the basis of this contract of insurance. **We** provide cover to **You** and/or **Your Domestic Helper** on the terms contained in the application, the **Policy Wording** and any other document including the most recent **Policy Schedule** that **We** issue to **You**.

The **Policy Schedule** will contain important information relevant to **Your** insurance including the **Commencement Date**, **Your** premium, the limits that **You** want for particular covers, and whether any standard terms need to be varied by way of endorsement.

All of these make up **Your Policy** with **Us**.

Part 4. Important Information Regarding Your Policy

Your Policy

Your Policy Wording and **Policy Schedule** describe the insurance contract between **You** and **Us**.

In return for **You** paying **Us** the premium, **We** insure **You** and/or **Your Domestic Helper** for the **Events** subject to the terms, conditions and exclusions in **Your Policy Wording** and **Policy Schedule**.

Please read **Your Policy**.

It is important that **You** carefully read and understand **Your Policy Wording** and **Policy Schedule** because they describe the terms, conditions and exclusions that apply to **Your** insurance under **Your Policy**.

Checking Your Policy

Please check **Your Policy Wording** and **Policy Schedule** to make sure all the information on them is correct. Please let **Us** know straight away if any alteration is needed. Please contact **Us** if **You** change **Your** address or account details.

Duty of Disclosure

Before **You** enter into **Your Policy** with **Us**, **You** must disclose fully and faithfully all the facts which **You** know or ought to know, which are relevant to **Us** in providing insurance to **You** and the premium **We** calculate. If **You** do not do so, **We** may have rights to cancel this insurance, or to refuse to pay **Your** claims or **You** may receive no benefit from the **Policy**.

The insurance cover under this **Policy** is based on the information submitted by **You** to **Us** in the proposal form. If **You** provided **Us** with any information that is incorrect, please notify **Us** immediately, otherwise **You** may receive no benefit in the event of a valid claim.

If the information which **You** subsequently provide **Us** differs materially from the information set out in the proposal form, **We** may offer cover on different terms or decline cover altogether.

Contacting Us

If **You** have any queries or need to contact **Us**, please telephone **Us** on +852 3191 6800 or write to **Us** at Chubb Insurance Hong Kong Limited, 39/F, One Taikoo Place, 979 King's Road, Quarry Bay, Hong Kong.

Keeping Your Documents Safe

You should keep **Your Policy Wording, Policy Schedule** and any endorsement (if applicable) in a safe place in case **You** need to refer to them in the future.

Certain types of cover under **Your Policy** require **You** to provide receipts and other documentary evidence to **Us**. **You** should keep those documents in a safe place in case **We** need them to settle a claim.

Part 5. Cover Under Your Insurance Policy

Who and what is insured?

You and/or **Your Domestic Helper** are insured for the **Events** subject to the terms, conditions and exclusions in **Your Policy**. Failure to comply with any of them shall invalidate all claims hereunder.

Part 6. Definitions

In **Your Policy** some words have a special meaning (whether expressed in the singular or the plural) and **We** define them below. To assist **You** the following words have been printed in Title case and bold wherever they appear in **Your Policy**.

Accident means a sudden, external and identifiable **Event** that happens by chance and could not have been expected from the perspective of **Your Domestic Helper**. The word **Accidental** shall be construed accordingly.

Accidental Death means death occurring as a result of an **Accidental Injury** within twelve (12) months from the date of **Accidental Injury** and includes **Disappearance**.

Accidental Injury means a bodily injury resulting from an **Accident** and which is not an illness and which:

- (a) is caused by violent, external and visible means; and
- (b) occurs during the **Period of Insurance**; and
- (c) results within six (6) months of the **Accident**; and
- (d) results solely and independently of any causes other than:
 - (i) the **Accident**; and/or
 - (ii) sickness directly resulting from medical or surgical treatment rendered necessary by the **Accident**; and
- (e) may include a bodily injury caused by **Your Domestic Helper** being directly and unavoidably exposed to the natural elements as a result of an **Accident**.

Anniversary Date means the date exactly one (1) year from the **Commencement Date** of **Your Policy** and the same date on each consecutive year thereafter.

Civil War means any of the following, whether declared or not, armed opposition, insurrection, revolution, armed rebellion, sedition, between two or more parties belonging to the same country where the opposing parties are of different ethnic religious or idealistic groups.

Commencement Date means 12:01 a.m. **Hong Kong** time on the date **We** agree to provide insurance for **Your Domestic Helper(s)** under the **Policy** and which is shown in **Your Policy Schedule**.

Disease means such occupational disease as defined in the **Ordinance** contracted by an **Employee of You** as a result of his exposure to the nature of his employment with **You**. Such exposure may extend over a period of time and part of which period may fall outside the **Period of Insurance** under this **Policy**.

Disappearance means if **Your Domestic Helper's** body has not been found within twelve (12) months from the date of the disappearance, sinking or wrecking of a conveyance in which he/she was travelling on that date, **We** will presume he/she has died as a result of an **Accidental Injury**.

Doctor means a person other than **You, Your Domestic Helper** or either of **Your** relatives, who is a properly qualified western medical practitioner licensed by the competent medical authorities in **Hong Kong**, and who in rendering such treatment is practicing within the scope of his or her licensing and training.

Domestic Helper means the part-time domestic helper **You** employ who:

- (a) is **Your Employee** legally work in **Hong Kong** as a part-time **Domestic Helper**; and
- (b) is aged between eighteen (18) and sixty (60) on the **Commencement Date** or any **Anniversary Date** of this **Policy**; and
- (c) whose annual income as **Your Employee** is less than HKD60,000 and works less than 20 hours per week for **You**.

Employee means the **Domestic Helper** and has the same meaning as assigned to that expression in the **Ordinance** and is aged between eighteen (18) and sixty (60) for the purpose of this **Policy**.

Event(s) means an occurrence that could give rise to a claim for a benefit under **Your Policy** during the **Period of Insurance**.

Hong Kong means Hong Kong Special Administrative Region of the People's Republic of China.

Noise-Induced Deafness means the same meaning as assigned to that expression in the Occupational Deafness (Compensation) Ordinance (Chapter 469 of the laws of Hong Kong).

Nominated Account means any credit card or bank account held by **You** (that can be accepted by **Us**), which will be used to pay premium of **Your Policy** or to credit any refundable amount to **You**; such **Nominated Account** must be maintained at a financial institution in **Hong Kong** and denominated in the currency of **Hong Kong**.

Ordinance means the Employees' Compensation Ordinance (Chapter 282 of the laws of Hong Kong).

Period of Insurance means one (1) month from the **Commencement Date** or the latest **Renewal Date** whichever is the later. If **You** continue to pay the premium then, unless **We** advise prior to the **Renewal Date** that **We** will not be renewing or amending the coverage, a **Policy** with the same terms and conditions automatically comes into existence for one (1) month from the **Renewal Date**. However, if **Your Policy** is cancelled or otherwise terminated, the **Period of Insurance** will be from the **Commencement Date** or **Renewal Date** whichever is the later up to and including the date of cancellation or termination.

Permanent means lasting twelve (12) consecutive months from the date of **Accident** and at the expiry of that period being beyond hope of improvement.

Pneumoconiosis means the same meaning as assigned to that expression in the Pneumoconiosis and Mesothelioma (Compensation) Ordinance (Chapter 360 of the laws of Hong Kong).

Policy means **Our** agreement with **You** which is made up of **Policy Wording, Your** proposal for insurance, the **Policy Schedule** and any endorsements or other documents **We** give **You** in writing.

Policy Schedule means the schedule which **We** send **You** at the commencement of **Your Policy** along with **Your Policy Wording**, as may be amended or replaced by **Us** from time to time, which sets out the level of benefits due to **You** under **Your Policy**.

Policy Wording means this document.

Policy Year means each continuous twelve (12) months **Period of Insurance** under this **Policy**, the first of which starts on the **Commencement Date** and thereafter on each **Anniversary Date**.

Proposal and Declaration means any signed proposal form and declaration and any information supplied by or on behalf of **You** in addition thereto or in substitution therefor.

Renewal Date means one (1) month from the **Commencement Date** and subsequently, the same date of each successive month.

Waiting Period means the period of time for and in respect of which no benefits are payable, other than arising from **Accidental Injury**.

We/Us/Our/Company means Chubb Insurance Hong Kong Limited.

You/Your means the owner of this **Policy**, who is named as policyholder in the **Policy Schedule** and is the legal employer of the **Domestic Helper**.

Part 7. Description of Coverage

Coverage A. Employer's Liability

Benefits of Coverage A. Employer's Liability:

Whereas **You** have made to **Us** a written **Proposal and Declaration** which shall be the basis of this contract and is deemed to be incorporated herein has applied to **Us** for the insurance herein contained and has paid or agreed to pay the premium specified herein as consideration for such insurance.

Now this section witnesseth that if any **Employee** in **Your** immediate employ shall sustain bodily injury or death by **Accident** occurring or **Disease** contracted during the **Period of Insurance** within **Hong Kong** and arising out of and in the course of his employment by **You**.

We will subject to the Limit of Indemnity stated in this Section and to the terms exclusions and conditions contained in or endorsed on this **Policy** indemnify **You** against **Your** legal liability under the **Ordinance** and independently of the **Ordinance** to pay compensation and damages and claimant's costs and expenses and also indemnify **Your** costs and expenses incurred with **Our** written consent in connection therewith.

Provided that in the event of any change to the **Ordinance** during or subsequent to the **Period of Insurance** altering the legal liability of **You** under the **Ordinance** the liability of the **Company** under this section shall be limited to such sums as **We** would have been liable to pay if the **Ordinance** had remained unaltered.

Further provided that:

- (a) the due observance and fulfilment of the terms of this section in so far as they relate to anything to be done or not to be done or to be complied with by **You**; and
- (b) the truth of the statements and answers in the **Proposal and Declaration** shall be conditions precedent to any liability of **Us** to make payment or to provide indemnity under this section.

The Limit of Indemnity for this section shall in the aggregate be limited to maximum HKD100 million for any one **Accident** or **Disease** irrespective of the number of **Employees** who may sustain bodily injury or death consequent on or attributable to the same occurrence of **Accident** or **Disease**.

Exclusions Applicable to Coverage A. Employer’s Liability:

- (a) Any liability of **You** which attaches by virtue of an agreement but which would not have attached in the absence of such agreement.
- (b) Any sum which **You** would have been entitled to recover from any party but for an agreement between **You** and such party.
- (c) Any injury by **Accident** or **Disease** sustained outside **Hong Kong**.
- (d) Any injury or sickness sustained or infirmity existed prior to the **Commencement Date** of this **Policy**.
- (e) Any liability arising from **Pneumoconiosis** or **Noise-Induced Deafness**.
- (f) **Your** liability to any person who is not **Your Employee** within the meaning of the **Ordinance**.
- (g) **Your** liability to any **Employee** of **You** who is not a domestic helper employed to perform household chore at **Your** working location specified in the **Policy Schedule**.
- (h) Any late payment surcharge fines penalties or punitive aggravated or exemplary damages for which **You** may become liable under the **Ordinance** or independently of the **Ordinance**.
- (i) Any injury by **Accident** or **Disease** attributable to war invasion act of foreign enemy hostilities or warlike operations (whether war be declared or not) **Civil War** mutiny rebellion revolution insurrection or military or usurped power.
- (j) Any liability of whatsoever nature directly or indirectly caused by or contributed to by or arising from:
 - (i) nuclear weapons material;
 - (ii) ionising radiation or contamination by radioactivity from any nuclear fuel or from any nuclear waste from the combustion of nuclear fuel and for the purposes of this exception combustion shall include any self-sustaining process of nuclear fission.
- (k) Any injury by **Accident** or **Disease** where **We** have not been given sufficient notice of the institution of proceedings in a court or tribunal to enable **Us** to be added as a party to the proceedings.
- (l) Any loss, demand, claim or suit directly or indirectly arising out of or related in any way to asbestos or asbestos-containing materials.

Coverage B. Personal Accident

If, during the **Period of Insurance**, **Your Domestic Helper** sustains an **Accidental Death** which results directly and independently of any other cause in one of the disabilities in the Personal Accident Table below within three hundred and sixty five (365) days from the date of the **Accident**, **We** will pay **Your Domestic Helper**, his/her legal representative or any other person appointed to act on behalf of **Your Domestic Helper** the benefit(s) referred to below.

Personal Accident Table		The percentage of the benefit amount shown in the Policy Schedule against Coverage B – Personal Accident
1	Accidental Death	100%

Part 8. General Conditions

Subject to the other terms, conditions and exclusions of the **Policy**.

1. How do We handle fraud or incorrect statement?

The **Policy** is issued based on the completeness and accuracy of information **You** and/or **Your Domestic Helper** give **Us** during the policy enrolment. If there is any fraud, mis-statement or concealment during such enrolment, or if **You** or **Your Domestic Helper** makes a dishonest claim, **We** will cancel this **Policy** immediately and will not pay any benefit. All claims under this **Policy** will be forfeited.

2. What will happen to this Policy if there are clerical errors?

If there is any clerical error in **Your Policy**, this will not invalidate **Your** insurance already in force nor continue **Your** insurance already terminated. If this **Policy** is terminated for reason other than clerical errors made by **Us**, it cannot be reinstated.

3. If You have more than one Part-time Domestic Helper Protection Plan:

Each part-time **Domestic Helper** is not allowed to be covered under more than one **Part-time Domestic Helper Protection Plan**. If **Your** part-time **Domestic Helper** is covered under more than one such **Policy**, **We** will consider **Your** part-time **Domestic Helper** to be insured under the **Policy** which was issued first if the benefit amount is the same.

In any case, **We** will refund the premium paid from the **Commencement Date**, without interest, to **You** under the **Policy** that is not giving cover.

4. Hong Kong Law and Jurisdiction

Your Policy is governed by the laws of **Hong Kong**. Any dispute or action in connection with **Your Policy** shall be conducted and determined in the courts of **Hong Kong**.

5. Hong Kong Currency

Your Policy is governed by the laws of **Hong Kong** and all legal actions concerning **Your Policy** must be brought at the courts of **Hong Kong**.

6. Premium

If **We** modify the premium, **We** will send **You** thirty (30) days' written notice to **Your** address on file prior to the effective date of modification.

7. Co-operation

As a condition precedent to **Our** liability, **Your Domestic Helper** or **You** or **Your** representatives shall co-operate fully with **Us** and **Our** medical advisers and will fully and faithfully disclose all material facts and matters which **You** and the **Your Domestic Helper** know or ought to know and will upon request execute any document to empower **Us** to obtain relevant information, at your expense, from any **Doctor** or **Hospital** or other source.

8. Reasonable Precautions and Material Changes

You and **Your Domestic Helper** shall take all reasonable precautions to prevent and minimise any accident, injury or death and **We** must be informed immediately in writing of any material information or change of circumstances whether relating to job occupation, sporting activity or otherwise which may

increase the possibility or likely quantum of a claim under the **Policy**. **We** reserve the right to continue cover on terms and conditions **We** consider appropriate to such changes in material information or circumstances or to decline to continue cover under the **Policy**.

9. **Renewal**

Applicable for monthly premium payment mode:

Subject to **Our** right to make any amendments to the premium rate, coverage, terms and conditions of this **Policy** as **We** deem appropriate on renewal, this **Policy** shall be renewed automatically on each **Renewal Date** for one (1) month. If either party wishes not to renew the **Policy** at the end of any **Period of Insurance**, notice of cancellation must be given in accordance with Part 9. Cancellation of Your Policy Clause.

If no such notice has been given by either party, **Your** payment of the premium on each **Renewal Date** will result in a policy with the same terms and conditions automatically coming into existence for one (1) month from that **Renewal Date**.

Applicable for annual premium payment mode:

Subject to **Our** right to make any amendments to the premium rate, coverage, terms and conditions of this **Policy** as **We** deem appropriate on renewal, this **Policy** shall be renewed automatically on each **Renewal Date** for one (1) month until the expiry of twelve (12) months from the **Commencement Date** or subsequent **Anniversary Date**. If either party wishes not to renew the **Policy** at the end of any **Period of Insurance**, notice of cancellation must be given in accordance with Part 9. Cancellation of Your Policy Clause.

If no such notice has been given by either party, **Your** payment of the premium on each **Renewal Date** will result in a policy with the same terms and conditions automatically coming into existence for one (1) month until the expiry of twelve (12) months from the **Commencement Date** or subsequent **Anniversary Date**.

In the event, **We** exercise **Our** right to decline renewal or to make any amendments to the premium rate, coverage, terms and conditions of this **Policy**, and inform **You** of this thirty (30) days prior to the **Renewal Date**.

10. **Notice and Sufficiency of Claims**

Written notice of a claim must be given to **Us** as soon as is reasonably possible and in any **Event** within thirty (30) days from the first day of the **Event**. Notice given by or on behalf of **You** or **Your Domestic Helper** to **Us** with information sufficient to identify **Your Domestic Helper** shall be deemed valid notice to **Us**. **We**, upon receiving a notice of claim, will provide to **Your Domestic Helper** such forms as it usually provides for filing proof of claim. **You** or **Your Domestic Helper** shall, at his/her own expense, provide such certificates, information and evidence to **Us** as it may from time to time be required in connection with any claim under this **Policy** and in the form prescribed. Proof of all claims must be submitted to **Us** within one-hundred-eighty (180) days from the first day of the **Event** giving rise to a claim, otherwise, **We** reserve the right to deny the claim application.

We, at **Our** own expense, have the right to have **Your Domestic Helper** examined as often as reasonably necessary while a claim is pending. It may also have an autopsy carried out unless prohibited by law.

11. **Expiry of Your Policy**

Your Policy expires at the end of the **Period of Insurance**.

12. **Third Party Obligation**

Any person or entity who is not a party to this **Policy** shall have no rights under the Contracts (Rights of Third Parties) Ordinance (Cap. 623 of the Laws of Hong Kong) to enforce any terms of this **Policy**.

13. **Interpretation of this Policy**

Please note that the English version of this **Policy** is the official version. This **Policy** provided to you in both English and Chinese languages for ease of reference only. The English version of the **Policy** will prevail if any dispute arises regarding the interpretation of any part of the **Policy**.

14. Remuneration of Third Parties

In taking out this insurance with **Us**, **You** acknowledge that **We** may have a relationship with a third party who **We** may pay for referring **You/Your** business to **Us**. **We** may pay them commission which is a percentage of the premium of the insurance policy which **You** hold with **Us**. The commission is already incorporated into the premium payable by **You** and the amount can vary, depending on the type of arrangement **We** have with the third party and the type of product **You** purchase.

15. Subrogation

We are entitled to subrogate **You** and/or **Your Domestic Helper's** right of recovery/indemnity against any third party and have the right to proceed at **Our** expense in the name of **You** and/or **Your Domestic Helper** against third parties who may be responsible for an **Event** giving rise to a claim under this **Policy**. **You** and/or **Your Domestic Helper** should co-operate and endeavor to secure such rights and shall not take any action to prejudice such rights.

16. Compliance with Applicable Economic and Trade Sanctions Laws

This insurance does not apply to the extent that trade or economic sanctions or other laws or regulations prohibit us from providing insurance, including, but not limited to, the payment of claims. All other terms and conditions of the **Policy** remain unchanged.

Chubb Insurance Hong Kong Limited is a subsidiary/branch of a US company and Chubb Limited, a NYSE listed company. Consequently, Chubb Insurance Hong Kong Limited is subject to certain US laws and regulations in addition to EU, UN and **Hong Kong** sanctions restrictions which may prohibit it from providing cover or paying claims to certain individuals or entities or insuring certain types of activities related to certain countries such as Cuba.

17. Mediation

Any dispute or difference arising out of, or in connection with, this **Policy** must first be referred to mediation at the Hong Kong Mediation Centre (HKMC) and in accordance with the HKMC Mediation Rules in effect at the time of the mediation. **You** and/or **Your Domestic Helper's** genuine attempt in resolving the dispute via mediation is a condition precedent to **You** and/or **Your Domestic Helper** pursuing the claim. If **You** and/or **Your Domestic Helper** does not bring the dispute to mediation within six (6) months from the time of **Our** claim decision, then such claim against **Us** is deemed to be withdrawn or treated as abandoned and **You** and/or **Your Domestic Helper** is barred from pursuing the same claim against **Us**.

18. Legal Action

No legal action shall be brought to recover on this **Policy** unless mediation has failed, and no such action shall be brought against **Us** after eighteen (18) months from the time of **Our** claim decision. If **You** and/or **Your Domestic Helper** fails to meet the time limit, then such claim against **Us** is deemed to be withdrawn or treated as abandoned and **You** and/or **Your Domestic Helper** is barred from pursuing the same claim against **Us**.

Part 9. Cancellation of Your Policy

When **You** can cancel

You can cancel **Your Policy** at any time.

In the event **You** are not satisfied with this **Policy** for any reason, **You** may exercise the right of cancellation during the free policy examination period (that is, within fifteen (15) days after the **Commencement Date**) with a full

refund of paid premium, subject to no benefit payment has been made. In such event, this **Policy** shall be deemed to have been void from the **Commencement Date** of this **Policy** and **We** shall not be liable to pay any benefit.

After the free policy examination period, **You** must give **Us** thirty (30) days' written cancellation notice in advance if **You** want to cancel **Your Policy**. The cancellation will take effect at 12:00 a.m. (midnight) **Hong Kong** time on the next **Renewal Date** after the written cancellation notice is received.

If **You** cancel, **We** will refund the premium for **Your Policy** less an amount which covers the period for which **You** and/or **Your Domestic Helper** was insured. However, **We** do not refund any premium if **We** have paid a benefit after **Your Policy**'s last **Anniversary Date**.

When **We** can cancel

We may cancel this **Policy** at any time by giving thirty (30) days' notice in writing to **You**. **We** will give **You** a notice in writing to **Your** address on file. If **We** cancel **Your Policy**, **We** will refund **You** the premium for **Your Policy** less an amount to cover the period for which **You** and/or **Your Domestic Helper** was insured. Any premium refund under **Your Policy** will not carry any interest.

In addition to any other legal rights **We** may have under this **Policy** or otherwise, **We** may cancel **Your Policy** by giving **You** written notice if **Your Domestic Helper** or **You** or **Your** legal representative:

- (a) breach the duty of utmost good faith;
- (b) make a misrepresentation to **Us** before or at the time **Your Policy** was entered into;
- (c) breach a provision of **Your Policy**;
- (d) make a fraudulent claim under any policy of insurance;
- (e) engage in any act or omission which under **Your Policy** **You** are required to notify **Us** of, but **You** do not notify **Us**; or
- (f) engage in any such act or omission which under the terms of **Your Policy** authorises **Us** to refuse to pay a claim either in whole or in part.

Automatic cancellation

Your Policy is cancelled automatically and without any written notice from **Us** if **You** do not pay any premium due to **Us** within thirty-one (31) days of when it is due. The cancellation takes effect from the date the premium **You** have paid **Us** ceases to cover the insurance under this **Policy**.

Your Policy will cancel automatically when:

- (a) **You** are unable to meet the definition of **You** as defined in the **Policy Wording**; or
- (b) **You** die.

Part 10. Exclusions

Your Policy will not apply to any **Event** arising directly or indirectly out of:

1. suicide, attempted suicide or deliberate self-inflicted injury by **Your Domestic Helper** regardless of the state of his/her mental health; or
2. sexually transmissible disease including AIDS (Acquired Immune Deficiency Syndrome) and ARC (AIDS Related Complex); or
3. any criminal or illegal act committed or attempted by **You** and/or **Your Domestic Helper** ; or
4. **Your Domestic Helper** being under the influence of intoxicating liquor, including having a blood alcohol content over the prescribed legal limit whilst driving, or being under the influence of any other drug unless it was prescribed by a **Doctor** and taken in accordance with the **Doctor**'s advice and is not for the treatment of addiction to illegal drugs; or
5. cosmetic or plastic surgery, installation and cost of hearing aids, eye examination for the correction of vision or fitting of glasses; or
6. injury sustained whilst engaging and taking part in any occupational duties other than the routine duties of a general domestic or household helper ; or
7. **Your Domestic Helper** engaging or participating in any kind of motorcycling (driver or passenger),

- motor sport, test drive, racing or competition on wheels; or
8. **Your Domestic Helper** engaging in any air travel except as a passenger in a fully licensed commercial passenger carrying aircraft; or
 9. War, invasion, acts of foreign enemies, hostilities or warlike operations (whether war be declared or not), **Civil War**, rebellion, revolution, insurrection, civil commotion assuming the proportions of or amounting to an uprising, military or usurped power; or
 10. any act of terrorism including but not limited to the use or threat of force, violence and/or harm or damage to life or to property (or the threat of such harm or damage) including, but not limited to, nuclear radiation and/ or contamination by chemical and/or biological agents, by any person(s) or group(s) of persons, committed for political, religious, ideological or similar purposes, express or otherwise, and/or to put the public or any section of the public in fear, or any action taken in controlling, preventing, suppressing or in any way relating to the events stated in this clause.
 11. pregnancy, childbirth, miscarriage, abortion or complications arising from any of these; or
 12. injury or illness sustained or infirmity existing prior the **Commencement Date** of this **Policy**; or
 13. **Your Domestic Helper** participating in or conducting training for any of the following activities:
 - scuba diving, snorkelling, free-diving or the use of any type of equipment to aid breathing underwater;
 - any kind of climbing, or mountaineering using rope or guides;
 - pot-holing;
 - parachuting, any kind of gliding, ballooning, bungyjumping or micro-lighting;
 - any activities involving any type of explosions (including but not limited to any activity involving the use of fireworks or firecrackers);
 - winter-sports which means sports that are done on snow or ice (including but not limited to skiing, snowboarding, ice skating, tobogganing);
 - any kind of hunting;
 - any kind of race other than on foot.
 14. conditions directly or indirectly caused by, resulting from or in connection with any of the following regardless of any other cause or **Event** contributing concurrently or in any other sequence to the loss:
 - ionising radiations from or contamination by radioactivity from any nuclear fuel or from any nuclear waste or from the combustion of nuclear fuel.
 - the radioactive, toxic, explosive or other hazardous or contaminating properties of any nuclear installation, reactor or other nuclear assembly or nuclear component thereof.
 - any weapon or device employing atomic or nuclear fission and/or fusion or other like reaction or radioactive force or matter.
 - the radioactive, toxic, explosive or other hazardous or contaminating properties of any radioactive matter.

The exclusion in this sub-clause does not extend to radioactive isotopes, other than nuclear fuel, when such isotopes are being prepared, carried, stored, or used for commercial, agricultural, medical, scientific or other similar peaceful purposes.

 - any chemical, biological, bio-chemical, or electromagnetic weapon.
 15. any claims made and actions instituted outside the jurisdiction of **Hong Kong**.
 16. any liability to any **Employee** who do not have any written employment contract / agreement in place at the time of **Accident**.
 17. **Your Domestic Helper** is aged below eighteen (18), on or above sixty (60) on the **Commencement Date** or any **Anniversary Date** of this **Policy**.

Part 11. Claims

Procedure for making a claim



You, or **Your Domestic Helper**, or **Your** legal representative should submit a claim within thirty (30) days of the **Event** taking place to Chubb Claim Centre (www.chubbclaims.com.hk). You or they can simply scan the below QR code to access the Chubb Claim Centre on your smartphone or tablet.

Alternatively, **You** or they can complete a claim form and submit together with the following documents as appropriate to **Us** within thirty (30) days of the **Event** taking place. Please call 3191 6800 for further assistance:

- (i) original receipts for any expenses incurred; and
- (ii) any reports that have been obtained from the police, a carrier or other authorities about an accident; and
- (iii) any other documentary evidence required by **Us** under **Your Policy**.

We may also have **Your Domestic Helper** medically examined at **Our** expense when and as often as **We** may reasonably require after a claim has been made. **We** may also arrange an autopsy if **We** reasonably require one.

Processing and payment of claims

We will take all reasonable steps to pay a valid claim promptly.

If **We** pay the benefit due to **Your Domestic Helper's Accidental Death**, **We** will pay this amount to **Your Domestic Helper's** estate.

Unless specified otherwise, **We** will pay amounts under **Your Policy** to **You**.

No payment under this **Policy** shall carry interest.

Making claims after Your Policy is cancelled

If **Your Policy** is cancelled this does not affect **Your** rights or **Your Domestic Helper's** rights to make a claim under **Your Policy** if the **Event** occurred before the date of cancellation.

Part 12. Dispute Resolution

If **You** are not happy with the way in which **Your Policy** was sold to **You** or any other aspect of **Your Policy**, please contact:

The Customer Service Manager
Chubb Insurance Hong Kong Limited
39/F, One Taikoo Place
979 King's Road
Quarry Bay, Hong Kong
O +852 3191 6222
F +852 2519 3233
E cs.hk@chubb.com

We have developed an internal procedure for dispute resolution in accordance with "The Code of Conduct for Insurers". If at any time **You** have an unresolved complaint about **Our** products or services, **You** can use **Our** internal dispute resolution process. **Your** query or complaint will then be reviewed and **We** will respond within fifteen (15) working days. If **You** are unhappy with the outcome of **Our** internal review of **Your** complaint, **You** may take **Your** complaint, at no cost to **You**, to the Insurance Complaints Bureau for assistance. Contact details are given below:

Insurance Complaints Bureau
29th Floor, Sunshine Plaza,
353 Lockhart Road, Wanchai, Hong Kong.
F +852 2520 1967

Part 13. Personal Information Collection Statement

The Company (“We/Us/Our”) want to ensure that Our **Insured Persons (“You/Your”)** are confident that any personal data collected by **Us** is treated with the appropriate degree of confidentiality and privacy.

This Personal Information Collection Statement sets out the purposes for which We collect and use personally identifiable information provided by **You (“Personal Data”)**, the circumstances when **Personal Data** may be disclosed and information regarding **Your** rights to request access to and correction of **Personal Data**.

(a) Purposes of Collection of Personal Data

We will collect and use **Personal Data** for the purposes of providing competitive insurance products and services to **You**, including considering **Your** application(s) for any new insurance policies and administering policies to be taken out with **Us**, arranging the cover and administering and managing **Your** and **Our** rights and obligations in relation to such cover. We also collect the **Personal Data** to be able to develop and identify products and services that may interest **You**, to conduct market or customer satisfaction research, and to develop, establish and administer alliances and other arrangements with other organisations in relation to the promotion, administration and use of **Our** respective products and services. We may also use **Your Personal Data** in other ways with **Your** consent.

(b) Direct Marketing

Only with **Your** consent, We may also use **Your** contact, demographic, policy and payment details to contact **You** with marketing information regarding **Our** insurance products by mail, email, phone or SMS.

(c) Transfer of Personal Data

Personal Data will be kept confidential and We will not sell **Your Personal Data** to any third party. We limit the disclosure of **Your Personal Data** but, subject to the provisions of any applicable law, **Your Personal Data** may be disclosed to:

- (i) third parties who assist Us to achieve the purposes set out in paragraphs a and b above. For example, We provide it to **Our** relevant staff and contractors, agents and others involved in the above purposes such as data processors, professional advisers, loss adjudicators and claims investigators, doctors and other medical service providers, emergency assistance providers, insurance reference bureaus or credit reference bureaus, government agencies, reinsurers and reinsurance brokers (which may include third parties located outside Hong Kong);
- (ii) **Our** parent and affiliated companies, or any company within Chubb local and outside Hong Kong;
- (iii) the insurance intermediary through which **You** accessed the system;
- (iv) others for the purposes of public safety and law enforcement; and
- (v) other third parties with **Your** consent.

With regard to the above transfers of **Personal Data**, where applicable, **You** consent to the transfer of **Your Personal Data** outside of Hong Kong.

(d) Access and correction of Personal Data

Under the Personal Data (Privacy) Ordinance (“PDPO”), **You** have the right to request access to and correction of **Personal Data** held by **Us** about **You** and We will grant **You** access to and correct **Your Personal Data** as requested by **You** unless there is an applicable exemption under the PDPO which We may refuse to do so. **You** may also request **Us** to inform **You** of the type of **Personal Data** held by **Us** about **You**. Requests for access or correction of **Personal Data** should be addressed in writing to:

Chubb Data Privacy Officer
39/F, One Taikoo Place
979 King's Road
Quarry Bay, Hong Kong
O +852 3191 6800
F +852 2560 3565
E Privacy.HK@chubb.com

Your request to obtain access or correction to **Your Personal Data** will be considered within forty (40) days of **Our** receipt of **Your** request. We will not charge **You** for lodging a request for access to **Your Personal Data** and if We levy any charges for providing information, such charges will not be excessive. No fee is charged for data correction requests

鐘點家傭保障計劃(中文譯本)

第一部分 一般建議

閣下必須詳細考慮本產品是否切合自己的要求、財務狀況及需要。此外，**閣下**亦需要認真閱讀保障的各項限制條款、種類及保額以決定本計劃是否合適。

第二部分 關於承保公司

安達保險香港有限公司(於香港註冊成立，其註冊辦事處地址為：香港鰂魚涌英皇道 979 號太古坊一座 39 樓 (安達保險) 為本保險產品的承保公司。在本保單內文內，**我們** 或 **我們的** 皆指安達保險香港有限公司。以下是聯絡**我們**的方法：

電話 +852 3191 6800

傳真 +852 2560 3565

電郵 Inquiries.HK@chubb.com

第三部分 我們可以提供的保障

在**閣下**投購此保險時完成申請手續。**我們**已依據 **閣下**給予的資料按保單的條款提供保障。**閣下**提供的資料將構成本保險合約的基礎。**我們**會依據在申請表、保單內文、及任何其他文件，包括**我們**簽發給 **閣下**最新的承保表內的條款，向**閣下**及/或 **閣下的家庭傭工**提供保障。

承保表記載與 **閣下**保險有關的重要資料，包括生效日、**閣下**需繳付的保費、**閣下**保障的保障金額及透過批註更改的任何標準條款。

以上提及的全部將構成 **閣下**與**我們**之間的保單。

第四部分 有關 閣下保單的重要資料

閣下的保單

閣下的保單內文及承保表記載了 **閣下**與**我們**之間的保險合約。

作為 **閣下**繳付保費的代價，**我們**將依據 **閣下**的保單內文及承保表內的條款、細則及不保事項的規定，為 **閣下**及/或 **閣下的家庭傭工**提供受保事件的保障。

請閱讀 **閣下**的保單。

小心閱讀及了解 **閣下**的保單內文及承保表是十分重要的，因為它們記錄了 **閣下**的保單內所列明保險的條款、細則及不保事項。

檢查 閣下的保單

小心檢查 **閣下**的保單內文及承保表，確保記載的所有資料皆正確無誤。如需作任何更改，請通知**我們**。如 **閣下**需更新住址或銀行戶口的資料，請聯絡**我們**。

披露義務

在閣下與我們簽訂保單前，閣下必須全面及如實地披露閣下知悉或應當知悉的，並與我們向閣下提供保險及我們計算保費有關的所有事實，否則我們有權取消本保險，或拒絕向閣下的索償作出賠償，或閣下可能不能得到本保單的保障。

保單項下的承保範圍是以閣下於投保書內向我們提供的資料為基準。假如閣下向我們提供的任何資料是不正確的，請即時通知我們，否則閣下可能未能就有效的索償得到保障。

假如閣下其後向我們提供的資料與投保書內所載的資料有重大差異，我們可能會以不同的條款提供保障或拒絕提供保障。

聯絡我們

如閣下有任何疑問或需要聯絡我們時，可致電 +852 3191 6800 或以書面郵寄香港鰂魚涌英皇道 979 號太古坊一座 39 樓安達保險香港有限公司。

安全保管閣下的文件

閣下必須把自己的保單內文、承保表及任何批註(如有)放置於一個安全的地方，確保日後能隨時查閱。

閣下的保單內部份類別的保障要求閣下向我們提供收據及其他證明文件。閣下必須把這些文件放置於一個安全的地方，以便我們處理索償時能使用。

第五部分 閣下在此保單下的保障

誰是受保人及保障是什麼？

閣下及閣下的家庭傭工可依據閣下之保單內的條款、細則及不保事項的規定獲得**受保事件**的保障。不遵守其中任何一項將使保單的保障索賠無效。

第六部分 詞彙的釋義

在閣下的保單內某些詞彙具指定涵義（不論以單數或複數表示），我們將該等詞彙定義如下。為協助閣下識別有關詞彙，特將此等詞彙全部以**粗體**表示。

意外指一宗外在、突發且屬可證明的事件，其須為偶然發生而閣下的家庭傭工無法預料。**意外事故**一詞須據此解釋。

意外身亡指因**意外受傷**發生後十二(12)個月內所致的死亡，其中包括**失蹤**。

意外受傷指由**意外**而非因病所致的身體損傷，並需符合下列條件：

- (a) 因暴力、外在及可見的手段所致；及
- (b) 在**受保期間**內發生的；及
- (c) 在**意外**發生後的六(6)個月內發生的；及
- (d) 除下列兩者外，須與其他因素無關：
 - (i) **意外**；及/或
 - (ii) 因**意外**後必須進行的醫療或手術治療而直接引起的疾病；及

(e) 可包括 **閣下的家庭傭工**因**意外事故**而直接及不可避免地暴露於自然環境所造成的身體損傷。

週年日指由本保單**生效日**起計一(1)年及之後每一周年的同日。

內戰指兩個或兩個以上屬同一國家的不同種族、宗教或理想主義團體之間，不論是否已宣佈的武裝反對派、叛亂、革命、武裝叛亂或煽動叛亂。

生效日指我們同意提供保單內保障的日期，該日期已列於 **閣下的承保表**內。保障將於該日的**香港時間**凌晨十二時零一分(12:01 a.m.)起生效。

職業病症是指 **閣下的僱員**由於暴露於 **閣下**的工作性質而患上**條例**所定義的職業病。此類風險可能會持續一段時間，其中一部分可能會超出本保單的**受保期間**。

失蹤指 **閣下的家庭傭工**因乘坐的交通工具沉沒或毀壞而失蹤，並由失蹤日或所乘坐的交通工具沉沒或毀壞日起計十二(12)個月內仍未發現 **閣下的家庭傭工**的屍體，我們便假設 **閣下的家庭傭工**因**意外受傷**而離世。

醫生指合資格執業的西醫醫師，在提供治療予他人時，香港的主管醫療當局已發出牌照予他／她，他／她於提供治療時已領有合資格執業的醫師牌照並提供其接受培訓的範圍內的醫療服務，惟有關人士不得為 **閣下**、**閣下的家庭傭工**及 **閣下的親屬**。

家庭傭工指 **閣下**僱用的鐘點**家庭傭工**：

- (a) **閣下的僱員**在香港合法僱用為鐘點**家庭傭工**；及
- (b) 在本保單**生效日**或任何**週年日**時年齡介乎十八(18)歲至六十(60)歲；及
- (c) 作為**閣下**的僱員，其年收入低於 60,000 港元並且每週為**閣下**工作的時間少於 20 小時。

僱員指**家庭傭工**，就本保單而言，其含義與**條例**中賦予該詞語的含義相同，並且年齡介乎十八(18)歲至六十(60)歲。

受保事件指在**受保期間**發生及能向本保單索償的事件。

香港指中華人民共和國香港特別行政區。

職業性失聰指與《職業性失聰(補償)條例》(香港法例第 469 章)賦予該詞的相同涵義。

指定賬戶指由 **閣下**持有的信用卡賬戶或銀行賬戶(而為**我們**接受的)，該選定賬戶用作支付 **閣下**的保單之保費，或收取任何退款；該**指定賬戶**必須於**香港**金融機構開立及維持有效運作，及以港元進行交易。

條例指《僱員補償條例》(香港法例第 282 章)。

受保期間指由**生效日**或最近的**續保日**起計的一(1)個月，以較後者為準。除非**我們**在**續保日**前通知 **閣下**的保單將不再受續保或修訂保障，否則在 **閣下**繼續繳付保費的情況下，一份具有相同條款及細則的保單將由**續保日**起自動生效一(1)個月。然而，如 **閣下**的保單被取消或因其他理由被終止，則**受保期間**將由**生效日**或**續保日**起計，以較後者為準，直至取消或終止保單的當日為止。

永久指**意外**發生之日起連續維持十二(12)個月，並在該期間完結時沒有改善的希望。

肺塵埃沉着病指與《肺塵埃沉着病及間皮瘤(補償)條例》(香港法例第 360 章)賦予該詞的相同涵義。

保單指**我們**與 **閣下**訂立的協議，該協議包括**保單內文**、**閣下**的投保書、**承保表**及任何由**我們**書面向 **閣下**發出的任何批註或其他文件。

承保表指**我們**在 **閣下**的保單生效時連同 **閣下**的**保單內文**發送給 **閣下**的文件，或不時發出修訂或更替的文件以便列明 **閣下**在本保單內可享有的保障金額。

保單內文指本文件。

保單年度指在本保單內每連續十二 (12) 個月的**受保期間**，首次由**生效日**起計及此後每個**週年日**起計。

投保書和聲明指任何已簽署的投保書和聲明，以及由 **閣下**或代表 **閣下**提供的任何附加信息或替代信息。

續保日指由**生效日**起計一 (1) 個月後及以後每個月之同一日。

等待期指是在此期間內沒有任何保障，而**意外受傷**除外。

我們/我們的指安達保險香港有限公司。

閣下/ 閣下的指本保單的持有人，已在**承保表**上列作保單持有人，並且為**家庭傭工**之合法僱主。

第七部分 保障項目

保障範圍 A 僱主法律責任

保障範圍 A 僱主法律責任的保障：

鑑於 **閣下**已向**我們**提交書面的**投保書和聲明**以作為本合約的基礎並被視為已納入本合約中，並向**我們**申請此保險並已支付或同意支付本保單中指定的保費作為保險費用。

本章節證明，如果 **閣下**直接僱用的**僱員**在**受保期間**內，在受僱於 **閣下**的工作期間在**香港境內**因工遭遇**意外**而引致身體受傷或死亡或感染**職業病症**，**我們將**根據本節中所述的賠償限額和本保單所包含的不保事項和一般條款賠償 **閣下**在**條例**下的法律責任，並附加獨立於**條例**，賠償 **閣下**因法律責任所需要支付的補償金和損害賠償、索償人的費用及支出，並且在**我們**書面同意的情況下賠償 **閣下**因此而產生的費用和支出。

但如果在**受保期間**內或之後**條例**出現任何修改，改變 **閣下**在**條例**下的法律責任，則本節中**我們的**責任將限於如果**條例**未經修改時**我們**本應支付的金額。

進一步規定如下：

- (a) **閣下**必須遵守和履行本節條款就任何與 **閣下**有關的事項必須做或不得做或必須遵守的事項；
- (b) **投保書和聲明**的真實性應作為**我們**根據本節支付或提供賠償的任何責任的先決條件。

無論有多少名員工因同一**意外**或**職業病症**發生而遭受身體受傷或死亡，本節的賠償限額在任何一次**意外**或**職業病症**總額均限制為港幣一(1)億元。

保障範圍 A 僱主法律責任的不保事項：

- (a) 任何因協議而產生的 **閣下**的責任，但在沒有該協議的情況下不會產生的任何責任。
- (b) **閣下**本來可以從任何一方追回的任何款項，但因 **閣下**與該方之間的協議而不能追回。
- (c) 在香港以外發生因**意外**以致的受傷或**職業病症**。
- (d) 在本保單**生效日**之前發生的任何受傷、疾病或身體不適。
- (e) 因**肺塵埃沉着病**或**職業性失聰**而產生的任何責任。
- (f) 在**條例**定義下任何非 **閣下**僱員的責任。
- (g) 任何不是在**承保表**中指定的工作地點從事 **閣下**的家務工作的僱主責任。
- (h) 不論是根據**條例**還是獨立於**條例**，任何因未按時支付而產生的過期附加費、罰款、懲罰性、加重或懲罰性賠償或懲戒性損害賠償。
- (i) 任何因戰爭、侵略、外敵行動、敵對行為或類似戰爭的行動 (不論宣戰與否)、**內戰**、叛亂、革命、暴動、起義、民眾騷亂、軍事或篡權導致的任何**意外**或**職業病症**。
- (j) 任何因下列原因直接或間接引起或促成或產生的任何性質的責任：
 - i. 核武器物質；
 - ii. 任何核燃料或核燃料燃燒產生的任何核廢料產生的電離輻射或放射性污染，燃燒包括任何自我維持的核子分裂過程。

- (k) 對於**意外或職業病症**造成的任何傷害，如果**我們**沒有收到法院或法庭訴訟開始的足夠通知而使**我們**不能夠申請加入為訴訟程序的一方。
- (l) 任何直接或間接因石棉或含石棉材料而產生的損失、索賠或訴訟。

保障範圍 B 個人意外

若閣下的**家庭傭工**在**受保期間**內因**意外身亡**而導致在**意外事故**日起計三百六十五 (365) 天內出現下列個人意外項目一覽表中的任何一種傷殘，且該傷殘與其他原因無關，我們將向閣下的**家庭傭工**、其法律代表或任何其他被指派代表閣下的**家庭傭工**支付：

個人意外項目一覽表

承保表中就保障範圍 B 部一個人意外保障所列保額的百分比

1	意外身亡	100%
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第八部分 一般條款

受本保單的其他條款、條文和不保事項約束。

1. 我們如何處理詐騙或失實聲明？

本保單是基於閣下及/或閣下的**家庭傭工**在投購保單時所提供資料的完整性及準確性而簽發。如當中有任何詐騙、蓄意的失實聲明或隱瞞，又或閣下或閣下的**家庭傭工**提出不誠實的索償時，我們會立即取消並作廢本保單及不會支付任何保障。閣下將喪失本保單下的所有索賠。

2. 如有筆誤，本保單將會如何？

如在本保單內有任何筆誤，將絕對不會令閣下原已生效的保險失效，亦不會令有關已失效的保險繼續生效。如本保單並非因我們的筆誤而被終止，則不能被重新續訂。

3. 如閣下擁有超過一份鐘點家傭保障計劃：

每位鐘點**家庭傭工**不可同時受保多於一份鐘點家傭保障計劃。如閣下的鐘點**家庭傭工**受保多於一份此類保單，如每份保單提供的保障相同時，則會以我們首次簽發的保單為準。

在任何情況下，任何重覆投購的保單會由生效日開始失效，我們將會在不付利息下全數退回已繳交的保費給閣下。

4. 香港法律及司法管轄權

閣下的保單是受香港法律管轄，所有與閣下的保單有關之法律訴訟必須在香港法院提出。

5. 香港貨幣

本保單項下的保費及保障以港元支付。所有由閣下向我們支付、及由我們支付予閣下或在閣下的保單內的其他人士的款項均須以港元結算。

6. 保費

若我們更改閣下的保費，我們會在生效日前三十 (30) 天把書面通知寄到閣下府上。

7. 配合

閣下的家庭傭工或 **閣下**或 **閣下**的代表應與**我們**和**我們的**醫療顧問充分合作以作為**我們**承擔責任的先決條件，並將充分忠實地披露 **閣下**和 **閣下的家庭傭工**知道或應知道的所有重要事實和事項，並應要求執行授權**我們**從任何**醫生、醫院**或其他來源獲取相關信息的任何文件，費用由 **閣下**承擔。

8. 合理預防措施及重要資料變更

閣下和 **閣下的家庭傭工**應盡可能採取一切合理的預防措施去避免及減少任何意外、受傷或死亡的機會。**我們**應以書面形式被告知任何重要信息或情況的變化，這些變化包括與工作職業、體育活動或其他可能增加**保單**索償的可能性或金額的情況有關。**我們**保留權利就重要信息或情況變化制訂其認為適當的條款和細則方繼續承保，或拒絕繼續承保本**保單**。

9. 續保

適用於以月繳作繳付保費方式：

在**我們**認為有需要的情況下，**我們**有權於續保時修訂保費、保障範圍、條文及條款，本**保單**將在每一續保日時自動續保一(1)個月。如任何一方在任何**受保期間**完結時不想繼續續保，必須依據第九部分一取消 **閣下**的**保單**之條款發出取消**保單**通知。

如任何一方均無發出該等通知，在 **閣下**於續保日時繼續付保費的情況下，一份具有相同條款及細則的**保單**將由續保日起自動生效一(1)個月。

適用於以年繳作繳付保費方式：

在**我們**認為有需要的情況下，**我們**有權於續保時修訂保費、保障範圍、條文及條款，本**保單**將在每一續保日時自動續保一(1)個月，直至由生效日或此後的週年日起計十二(12)個月完結時。如任何一方在任何**受保期間**完結時不想繼續續保，必須依據第九部分一取消 **閣下**的**保單**之條款發出取消**保單**通知。

如任何一方均無發出該等通知，在 **閣下**於續保日時繼續付保費的情況下，一份具有相同條款及細則的**保單**將由續保日起自動生效一(1)個月，直至由生效日或此後的週年日起計十二(12)個月完結時。

如果**我們**行使拒絕續保或對本**保單**的保費、保障範圍、條款和條件進行任何修改的權利，**我們**將在續保日期前三十(30)天通知 **閣下**。

10. 索償通知及充份程度

索償的書面通知必須在合理可行的情況下盡快遞交給**我們**，在任何情況下，必須在**受保事件**發生的當天起計三十 (30) 天內遞交。由**閣下**或 **閣下的家庭傭工**或其代表所發出予**我們**的通知應提供足夠資料作識別 **閣下的家庭傭工**身份之用，方可視為有效通知。**我們**收取索償通知後，會向 **閣下的家庭傭工**提供一般用於提交索償證明的表格。由於本**保單**下的任何索償有可能不時以規定的方式提出要求，因此**閣下**或 **閣下的家庭傭工**應自費向**我們**提供所需的證明、資料和證據。所有索償證明必須在提出索償申請的一百八十 (180) 天內提交給**我們**，否則可能導致索償遭拒。

在審核索償申請的過程中，**我們**有權在合理必要的情況時自費對 **閣下的家庭傭工**進行檢查。除非法律禁止相關行為，**我們**亦可能進行驗屍。

11. 閣下保單到期

閣下的**保單**於**受保期間**完結時會終止。

12. 第三者權利

任何不是本保單某一方的人士或實體，不能根據《合約(第三者權利)條例》(香港法例第623章)強制執行本保單任何條款。

13. 本保單的詮釋

請注意本保單以英文版本為正式版本，本保單同時設有中英文版本，惟僅供閣下作參考而已。因對本保單內任何地方的詮釋而引起任何爭議，均以英文版本為準。

14. 第三方所得的酬勞

在與我們申請保險時，閣下理解閣下的保險可能是由第三方轉介給我們，而我們可能會就此在閣下給付的保費中支出某百分比是作為佣金付予第三方。佣金已包含在閣下給付的保費中，同時就不同的保險產品及轉介方案佣金亦會有所不同。

15. 代位權

我們有權以自費方式，以閣下及/或閣下的家庭傭工的名義對導致根據本保單提出索償的事件可能負上責任的第三方提出訴訟。閣下及/或閣下的家庭傭工應合作並努力確保此類權利，並不得採取任何損害此類權利的行動。

16. 遵守經濟及貿易制裁措施

本保單不適用於貿易或經濟制裁措施或其他法律或法規禁止我們提供保險的範圍，包括但不限於支付索賠。保單中其他所有條款與細則均維持不變。

安達保險香港有限公司是一間美國公司 - Chubb Limited 的子公司/分公司，Chubb Limited 是紐約證券交易所上市公司，因此除了歐盟、聯合國和香港的貿易限制之外，安達保險香港有限公司還受某些美國法律和法規的約束，這些限制可能禁止其向某些個人或實體提供保險或支付賠償，或者對某些類型的活動及某些國家/地區例如古巴提供保障。

17. 調解

凡出現因本保單產生或與本保單有關的任何爭議或歧異，均須首先提交香港和解中心 (HKMC)，並按當時有效的香港和解中心的調解規則進行調解。閣下及/或閣下的家庭傭工通過調解真誠地嘗試解決爭議是閣下及/或閣下的家庭傭工追討索償的先決條件。倘若閣下及/或閣下的家庭傭工未於我們作出理賠決定後六(6)個月內將爭議提交調解，則將被視為撤回或放棄該索償，而閣下及/或閣下的家庭傭工對我們就同樣索償的追討將不獲受理。

18. 法律訴訟

除非調解失敗，否則不得針對本保單提起任何法律訴訟，並且於我們作出理賠決定之日起十八(18)個月後不得對我們提出有關訴訟。若閣下及/或閣下的家庭傭工超過上述時限，則將被視為撤回或放棄該索償，而閣下及/或閣下的家庭傭工對我們就同樣索償的追討將不獲受理。

第九部分 取消閣下的保單

閣下在何時可以取消保單

閣下可於任何時間取消保單。

在無任何索償之情況下，無論閣下基於任何理由對本保單不滿，閣下有權於免費保單審閱期(生效日後十五(15)天內)取消本保單，並可獲退還所有已繳付的保費。在此情況下，本保單將被視為於生效日起失效，而我們毋須為任何賠償負責。

在免費保單審閱期後，如閣下欲取消閣下的保單，必須在三十(30)天前以書面通知我們。在我們收到閣下的書面通知後，取消保單的生效時間將在下一個續保日的香港時間凌晨十二時(12:00 a.m.) (午夜)開始。

如閣下取消保單，則我們在減去閣下及/或閣下的家庭傭工於仍受保障期間所需繳付的保費後，餘數會退回給閣下。然而，如我們在閣下的保單之上一個週年日後曾支付保障，則我們不會退回任何保費。

我們在何時可以取消閣下的保單

我們可以隨時通過提前三十(30)天向閣下發出書面通知來取消本保單。我們會向閣下在我們文件案內的地址發出書面通知。如我們取消閣下的保單，則在減去閣下及/或閣下的家庭傭工於仍受保障期間所需繳付的保費後，餘數會退回給閣下，惟不付任何利息。

除了在本保單內或在其他情況下給予我們應有的合法權利外，當出現以下情況時，我們會書面通知閣下取消保單，如閣下的家庭傭工或閣下或閣下的法律代表：

- (a) 違反絕對誠信的責任；或
- (b) 在達成閣下的保單合約的事前或當時作出失實聲明；或
- (c) 違反閣下的保單的條文；或
- (d) 在任何保險保單內提出虛假的索償；或
- (e) 在閣下的保單內規定閣下必須通知我們而閣下卻沒有遵行的任何行為或疏忽；或
- (f) 作出任何行為或疏忽，令我們可根據閣下的保單內規定拒絕支付全部或部份賠償。

自動取消

當在保費到期的三十一(31)天內閣下不繳付保費，閣下的保單將會被自動取消，而我們亦毋須發出任何書面通知，該取消保單將由閣下向我們停止繳付本保單的保費的當天生效。

閣下的保單在以下情況下會被自動終止，當：

- (a) 閣下不再符合保單內文閣下的釋義；或
- (b) 閣下身故。

第十部分 不保事項

閣下的保單不適用於由以下任何一個情況直接或間接而引致的受保事件：

1. 不論閣下的家庭傭工的精神狀態如何，自殺、企圖自殺或蓄意作出自殘行為；或
2. 性傳播疾病，包括 AIDS (愛滋病) 和 ARC (愛滋病相關症狀)；或
3. 閣下及/或閣下的家庭傭工犯下或企圖犯下的任何犯罪或非法行為；或
4. 閣下的家庭傭工受酒精影響，包括駕駛車輛時血液之酒精含量超過法定水準，或受任何其他藥物影響，但按照醫生配方及指示服食而並非因治療沉溺藥物者則屬例外；或
5. 美容或整形手術，安裝和耳聽器的費用，矯正視力的眼部檢查或配戴眼鏡；或

6. 在從事一般家務或**家庭傭工**的常規職責以外的任何職業職務中受傷；或
7. **閣下的家庭傭工**從事或參與任何摩托車（駕駛或乘客）、汽車比賽、速度測試、使用車輪之競賽或比賽；或
8. **閣下的家庭傭工**參與任何航空活動；但不包括乘坐由已正式註冊的航空公司之民航客機的乘客；或
9. 戰爭、侵略、外敵行動、敵對行為或類似戰爭的行動（不論宣戰與否）、**內戰**、叛亂、革命、暴動、起義、民眾騷亂、軍事或篡權；或
10. 任何恐怖主義活動，包括但不限於使用或威脅使用武力、暴力及/或對生命或財產造成傷害或損毀（或威脅造成此類傷害或損毀），包括但不限於核輻射及/或化學及/或生物污染，由任何人士或團體，以達到政治、宗教、意識形態或類似的目的，不論是否明示，及/或令公眾或任何部分公眾恐慌以控制、預防、鎮壓，或以任何方式與本條款所述事件相關的任何行動；或
11. 懷孕、分娩、流產、墮胎或由此而起之併發症；或
12. **保單生效日**之前已存在受傷或疾病；或
13. **閣下的家庭傭工**參加或進行以下任何活動的培訓：
 - 潛水、浮潛、自由潛水或使用任何型式的水下呼吸器材；
 - 任何攀登或使用繩索或導繩的登山活動；
 - 洞穴探險；
 - 跳傘、滑翔、熱氣球、蹦極或超輕型飛機等任何活動；
 - 任何涉及任何形式爆炸（包括但不限於使用煙花或鞭炮的活動）的活動；
 - 冬季運動，指在雪地或冰上進行的運動（包括但不限於滑雪、滑板、溜冰、雪橇）；
 - 任何狩獵活動；
 - 任何非徒步的競賽活動。
14. 任何一項直接或間接引起的狀況，是由於以下任何一項所導致或與之相關的，無論是否同時或以任何其他順序導致損失的任何其他原因或**受保事件**：
 - 任何核子燃料、核子廢料或核子燃料燃燒造成的電離子輻射或放射性污染；
 - 任何核子裝置、反應器或其他核子機組或其核子元件之輻射性、毒性、爆炸性或其他危險性或污染物質；
 - 任何應用原子或核子分裂，及/或核聚變或其他同類反應，或輻射性能量或物質之武器或裝置；
 - 任何輻射物質造成之輻射性、毒性、爆炸性或其他危險或污染物質。當輻射同位素正在預備、預置、運載、儲存或使用於商業、農業、醫療、科技或其他類似的和平用途時，則本項之不承保範圍並不包括該等輻射同位素，惟核子燃料除外；
 - 任何化學、生物、生化或電磁武器。
15. 在香港法律管轄以外提出的任何索賠或採取的行動。
16. 對於任何**僱員在意外事故**發生時沒有任何書面僱傭合同或協議的任何責任。
17. 您的**家庭傭工**在本**保單生效日**或任何週年日時未滿十八 (18) 歲或年滿六十 (60) 歲以上。

第十一部分 索償

提出索償的步驟



閣下或 閣下的家庭傭工或 閣下的法律代表應於事發後三十 (30) 天內於安達索償中心 (www.chubbclaims.com.hk) 提交索償申請。閣下或他們亦可透過智能電話或平板電腦掃描以下的 QR 碼登入安達索償中心。

再者，閣下或他們可將索償申請表，連同下列文件 (視乎事件而定) 於**受保事件**事發後三十 (30) 天內送交至安達保險香港有限公司。如需協助，請致電 3191 6800：

- (i) 任何費用的正本收據；及
- (ii) 任何從警察、營運商或其他機構的報告或證明文件；及
- (iii) **我們就 閣下的保單而要求的任何其他證明文件。**

我們也可在索償提出後，在合理情況下自費對 閣下的家庭傭工進行醫療檢查。如有合理需要，我們也可以安排驗屍。

處理及支付索償

我們會按正常程序儘快支付獲批為有效索償的賠償。

若我們因 閣下的家庭傭工意外身亡而須支付保障，我們將把賠償數額支付作為 閣下的家庭傭工遺產的一部份。

除另有規定外，我們將把閣下的保單內所定的賠償數額支付給閣下。

在本保單內的賠償概不付任何利息。

取消保單後提出索償

如 閣下已取消保單，但**受保事件**是在保單取消日期前發生的話，則 閣下或 閣下的家庭傭工在保單內可享有的索償權力將不會受影響。

第十二部分 解決爭議

如 閣下對購買本保單的過程或對本保單的任何其他方面有不滿時，請聯絡：

客戶服務經理
安達保險香港有限公司
香港鰂魚涌英皇道 979 號太古坊一座 39 樓
電話 +852 3191 6222
傳真 +852 2519 3233
電郵 cs.hk@chubb.com

我們已依據《承保商專業守則》建立了一套內部流程處理爭議。在任何時候，如 閣下有一些關於我們產品或服務的投訴仍未獲解決，歡迎 閣下使用我們的內部解決爭議程序。屆時 閣下的查詢或投訴將會獲得調查，而我們亦會在十五 (15) 個工作天內回應。若 閣下對我們最終的回應不滿意，可免費向保險投訴局尋求協助。聯絡資料如下：

保險投訴局

香港灣仔駱克道 353 號三湘大廈 29 樓

傳真 +852 2520 1967

第十三部分 個人資料收集聲明

本公司「我們」竭力確保受保人「閣下」對我們在收集個人資料方面的信心，我們於處理任何已收集的個人資料均會採取適當的保密程度及以處理私隱手法採用資料。

本個人資料收集聲明陳述我們收集及利用由閣下提供以識別閣下個人的資料「個人資料」的目的、個人資料可能被公開的情況及閣下有權要求查閱及更改個人資料的詳情。

(a) 收集個人資料的目的

我們收集及使用閣下個人資料的目的，是為了向閣下提供具優勢的保險產品及服務，包括用作考慮閣下投保任何新的保險產品，及管理由我們提供的保單，安排保障，及執行和管理閣下及我們在該等保障下的權利及責任。同時，我們亦會收集及使用閣下個人資料以設計及識別能吸引閣下的產品及服務，進行市場或顧客滿意度調查，及發展、建立及管理與其他機構就宣傳推廣、行政及使用我們相應的產品及服務的聯盟及其他計劃。在閣下的同意下我們亦可能使用閣下的個人資料作其他用途。

(b) 直接促銷

只會在得到閣下的同意，我們會使用閣下的聯絡資料、人口統計資料、保單資料及繳費資料透過郵寄、電郵、電話或 SMS 短訊方式聯絡閣下以便提供有關我們的保險產品的宣傳推廣。

(c) 個人資料的轉讓

個人資料將予以保密，而我們亦絕對不會將閣下的個人資料售賣給第三者。我們會對公開閣下的個人資料作出限定；但在任何適用的法例條文下，閣下的個人資料可能：

- (i) 會被透露予我們相信必須達成以上第 a 及第 b 段所述目的之第三者。例如：我們把閣下的個人資料提供予我們相關的員工及承辦商、代理及其他涉及以上目的之人士，如處理數據的人士、專業人士、損失評估人員及索償調查員、醫生及其他醫療服務提供者、緊急支援服務提供者、保險局或信貸局、政府機構、分保人及分保經紀（當中可能包括在香港以外的第三方）；
- (ii) 會給我們的母公司及附屬聯營公司或安達在本地及海外的相關人員使用；
- (iii) 會提供予保險中介人，閣下可以透過指定系統查閱有關資料；
- (iv) 會給予有關人士以維持公眾安全及法紀；及
- (v) 在閣下同意下提供予其他第三者。

就以上個人資料的轉移，如有適用的地方，則代表閣下亦同意該資料在香港以外地方轉移。

(d) 查閱及更改個人資料

根據個人資料(私隱)條例，閣下有權要求查閱及更改曾給予我們的資料，另除非在個人資料(私隱)條例下有適用的豁免條款賦予我們可拒絕遵從，否則我們必須按閣下的要求，給閣下查閱及更改本身的個人資料。閣下亦可向我們要求提供持有閣下的個人資料的類別。

翻查或更改個人資料的要求，必須透過書面提出及郵寄致：

安達個人資料私隱主任
香港鰂魚涌英皇道 979 號
太古坊一座 39 樓
電話 +852 3191 6800
傳真 +852 2560 3565
電郵 Privacy.HK@chubb.com

在我們收到閣下查閱或更改資料的要求後，會在四十(40)天內予以回覆該項要求，我們一般將不會收取任何費用；但即使我們在提供資料時需徵收費用，它們也會在合理的水平。至於更改資料的要求，則不會收取任何費用。

About Chubb in Hong Kong SAR

Chubb is a world leader in insurance. With both general and life insurance operations, Chubb has been present in Hong Kong SAR for more than 90 years via acquisitions by its predecessor companies. Its general insurance operation in Hong Kong SAR (Chubb Insurance Hong Kong Limited) is a niche and specialist general insurer. The company's product offerings include property, casualty, marine, financial lines and consumer lines designed for large corporates, midsized commercial & small business enterprises as well as retail customers. Over the years, it has established strong client relationships by being consistent and responsive, by offering market leading claims services and innovative products, and providing market leadership built on financial strength.

More information can be found at www.chubb.com/hk.

Contact Us

Chubb Insurance Hong Kong Limited
39/F One Taikoo Place
979 King's Road
Quarry Bay, Hong Kong
O +852 3191 6800
F +852 2560 3565
www.chubb.com/hk

關於安達香港

安達為領先全球的保險公司，經營一般保險及人壽保險業務，透過收購其前身公司，已立足香港特別行政區超過 90 年。安達香港的一般保險業務 (安達保險香港有限公司) 為大型及中小企業客戶、以及個人客戶設計及提供特定的保險產品，包括財產險、責任險、海上險、金融險和個人保險服務。多年來，安達保險憑著其雄厚財務實力及市場領導地位，開創新的保險產品，提供優質理賠服務，建立長遠穩健的客戶關係，與時並進。

如欲獲取更多資料可瀏覽
www.chubb.com/hk。

聯絡我們

安達保險香港有限公司
香港鰂魚涌英皇道 979 號
太古坊一座 39 樓
電話 +852 3191 6800
傳真 +852 2560 3565
www.chubb.com/hk

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